

BANK OF AMERICA v. CALHOUN

21CF13478

PLAINTIFF'S MOTION TO DEEM MATTERS ADMITTED

This is a collections case. Before the Court is plaintiff's unopposed motion to deem matters admitted.

Pursuant to Calaveras County Superior Court Local Rule 3.3.7 (adopted 1/1/18), "all matters noticed for the Law & Motion calendar shall include" specified language in the Notice of Motion, and "failure to include this language in the notice may be a basis for the Court to deny the motion." Based on plaintiff's failure to include the required language, the motion is DENIED, without prejudice to refile, to the extent it otherwise is timely and appropriate pursuant to relevant statutes.

The Clerk shall provide notice of this Ruling to the parties forthwith. No further formal order is required.

WELLS FARGO BANK v. SCHULTZ

21CF13622

PLAINTIFF'S MOTION TO DEEM MATTERS ADMITTED

This is a collections case. Before the Court is plaintiff's unopposed motion to deem matters admitted.

On 02/04/22, plaintiff caused to be served upon defendant by regular US mail a first set of Requests for Admission, using his current address of record. Defendant had 35 days from the mailing to provide a verified written response. (CCP §§ 1013 and 2033.250.) Defendant did not timely (or ever) comply. (See Gavrilescu Decl. Para 3.)

Pursuant to CCP §2033.280(b), the party propounding RFAs may "move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction." The trial court "shall" grant the motion unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response in substantial compliance with Section 2033.220. (See *Lattimore v. Dickey* (2015) 239 Cal.App.4th 959, 971; *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777-778.)

The matters contained in the RFA are hereby deemed admitted, subject to counsel's confirmation that defendant did not serve substantially complaint responses before the hearing. In addition to the order deeming admitted all relevant matters within the RFAs, the moving party is entitled as a matter of law to monetary sanctions. (CCP §2033.280(c).) Counsel has not requested any sanction, but is entitled to an order that defendant reimburse plaintiff the filing fee of \$60; It is so ordered.

The Clerk shall provide notice of this Ruling to the parties forthwith. Plaintiff to prepare a formal Order pursuant to Rule of Court 3.1312 in conformity with this ruling.